

complied with, which included awareness of the fact that nobody had taken care of the payment of fees.

In J 7/16 the Legal Board held that the relevant cause of non-compliance with the two-month time limit of R 136(1) EPC lay in the fact that the former representative was not in a position to act properly in the proceedings due to his state of health. Thus, the date of removal of the cause of non-compliance could only be the date on which the applicant had inspected the file and realised that its former representative had not acted properly.

In T 1547/20, the start of the two-month time limit was the appellant's receipt of a communication from the registry. The board received the request for re-establishment two months and ten days after the registry's communication was sent out. The appellant had submitted that it had filed the request for re-establishment within the time limit stipulated by R 136(1) EPC but there was no evidence as to the date of receipt of the communication. In the absence of proof that the actual date of receipt of the communication was within nine days after it was sent out, the board was satisfied that the request for re-establishment was submitted in time.

(iii) Time limit not observed due to an error of law

In T 493/08 the board considered that, where a time limit was not observed due to an error of law, the removal of the cause of non-compliance with that time limit occurs on the date on which the applicant actually became aware of the error of law (see also J 1/20). The board noted that, in an apparent contrast to this view, in T 1026/06 the date when the applicant should have made investigations was considered to be critical, even though the applicant apparently failed to undertake such investigations as a consequence of what was considered to be an error of law.

b) Responsible person

In several decisions the boards considered the question of the responsible person who could or should have detected the omission.

In T 812/04 the board held that the person to be taken into account for the purposes of establishing the point in time when the appellant was no longer prevented from carrying out an unperformed act was the duly appointed representative.

In T 32/04 the board considered that in the absence of a duly registered transfer of the application, the person responsible for the purpose of the EPO remained the applicant or his representative. Hence an alleged assignment of the application to a third party in the absence of such a registration was "res inter alios acta", i.e. outside the ambit of the legal relationship between the applicant and the EPO.

In T 191/82 (OJ 1985, 189) the board held that in a case in which non-compliance with a time limit was discovered by an employee of a representative, the cause of non-compliance, i.e. failure to appreciate that the time limit had not been complied with, could not be considered to have been removed until the representative concerned had himself

been made aware of the facts, since it had to be his responsibility to decide whether an application for re-establishment of rights should be made and, if it was to be made, to determine the grounds and supporting facts to be presented to the EPO (see also J 7/82, OJ 1982, 391; J 9/86; T 381/93 of 12 August 1994).

In J 1/13 the Legal Board considered that within a law or patent attorney's firm the relevant person was the representative and not his or her employee (T 191/82); however, it was not up to the representative to extend the time period of R. 136(1) EPC at will by keeping him- or herself intentionally uninformed (see T 1985/11, where the board found it irrelevant that the representative had not read the letter when acknowledging its receipt). In addition, although most cases regarding the removal of the cause of non-compliance deal with the point in time when a representative discovered (or ought to have discovered) the error, the Legal Board stated it was recognised that the person whose knowledge was relevant might also be the applicant himself (see J 27/88; J 27/90, OJ, 1993, 422; T 840/94, OJ 1996, 680; T 32/04).

In T 840/94 (OJ 1996, 680) the board held that if a party instructed the authorised representative not to pass on any further communication from the EPO, it could not then rely on the fact that information notified to the representative and necessary for continuing the proceedings was lacking. See also T 1908/09.

In T 1588/15 the finding of the board differed from the line taken by J 1/13. The board saw no good reasons for the representative being uninformed and not taking immediate action in the knowledge (or merely belief) of being uninformed. It held that an applicant had a specific duty to positively inform its representative about an intended abandonment of an application. The board held that even when a representative was explicitly exempted from looking after a fee payment, at least he could be expected to be informed at all times about the applicant's intention as to whether or not the application was to be maintained. It decided that receipt of the noting of loss of rights by the representative triggered the time limit of two months foreseen in R. 136(1) EPC.

In J 27/88 the Legal Board held that the responsible person in the case at issue was neither the appellant nor the European representative but the **US patent attorney** who was the authorised agent of the appellant and was duly empowered to take all necessary measures. The date of removal of the cause of non-compliance was the date on which the US patent attorney became aware of the omission.

In J 27/90 (OJ 1993, 422) the applicant, a US company, properly appointed a European professional representative. For the payment of renewal fees it used a computerised service firm, a so-called "**renewal fee payment agency**". The Legal Board held that in the absence of circumstances to the contrary a communication under R. 69(1) EPC 1973 to the professional representative removed the cause of non-compliance. This also applied when parties instructed the (European) professional representatives via their (national) patent attorney. The appointment of an independent service firm for the payment of renewal fees did not constitute circumstances to the contrary.

In T.1908/09 the board observed that if there was more than one applicant the co-applicants had to name a common representative (Art. 133(4) and R. 151(1) EPC). If they failed to do so and one of the applicants was obliged to appoint a professional representative under Art. 133(2) EPC, this representative was deemed to be the common representative. In the case at issue, with the notification of the loss of rights (R. 126(2) EPC) to their common representative (Rule 130(3) EPC) both applicants were made aware of the fact that the time limit had expired.

In J.16/93 the Legal Board held that in the event of exceptional circumstances the cause of non-compliance with a time limit may persist even though the applicant's representatives were duly informed of the loss of rights resulting therefrom. This is the case when a combination of circumstances, which cannot be blamed on either the applicant or its representatives, and which arose in particular from the fact that they had both moved to new addresses and from the illness of a director of the company applying for a European patent, made it impossible for the professional representatives to contact the applicant in due time. This combination of circumstances prevented the representatives from performing the omitted act – i.e. paying the renewal fee for the third year – since they had not received any advance. A representative whose authorisation is silent in this respect and who has not received any funds for this purpose is not expected to advance moneys on behalf of his client out of his own pocket.

c) Legal fiction of deemed notification

In J.7/82 (OJ 1982, 391) the Legal Board held that in a case in which the receipt of a notification was relevant to the question of when the cause of non-compliance with a time limit had been removed, the significant date was the **date of actual receipt** by the applicant. In J.22/92 the Legal Board emphasised that the removal of the cause of non-compliance was a matter of fact and therefore had to be established beyond any reasonable doubt. This was not the case where under R. 78(2) EPC 1973 (in the version in force until 31 December 1998) the notification was only deemed to have been made when despatch had taken place and when the receipt of the letter could not be proved. Thus, the Legal Board considered the date on which the responsible representative of the appellant first became aware of the missed time limit to be the date on which the removal of the cause of non-compliance with the time limit had occurred (see T.191/82, OJ 1985, 189).

In T.428/98 (OJ 2001, 485) it was stated that where a communication from the EPO notified an applicant that he had missed a time limit, the cause of failure to complete the omitted act within the meaning of Art. 122(2), first sentence, EPC 1973 was as a rule removed on the date when the applicant actually received the communication, provided that failure to complete the act was purely due to previous unawareness that the act had not been completed. The legal fiction of deemed notification under R. 78(3) EPC 1973 (in the version in force until 31 December 1998, now R. 126(2) EPC) had no effect on the date of removal of the cause of non-compliance, even if this worked against the applicant because the actual date of receipt of the communication preceded the date calculated according to R. 78(3) EPC 1973 (see also T.1063/03).

In J 11/03, however, the Legal Board agreed with the appellant that the removal of the cause of non-compliance had not taken place before deemed notification in accordance with R 78(2) EPC 1973, since there was no indication that the communication concerning loss of rights had already been received before that date (see also J 10/99).

4.1.2 One-year time limit following the expiry of the unobserved time limit

A request for re-establishment of rights is only admissible within the year immediately following the expiry of the unobserved time limit (R 136(1), first sentence, EPC; Art. 122(2), third sentence, EPC 1973). Under R 136(1), third sentence, EPC, the request for re-establishment of rights is not deemed to have been filed until the prescribed fee has been paid.

In J 16/86 the Legal Board ruled that a request for re-establishment filed over a year after expiry of the non-observed time limit was inadmissible whatever the reasons for its late submission (see also J 2/87, OJ 1988, 330; J 34/92). In J 12/98 the Legal Board held that the words "within the year immediately following the expiry of the unobserved time limit" in Art. 122(2), third sentence, EPC 1973 could not be construed to mean "within one year of the applicant having knowledge of the unobserved time limit". This interpretation would make the starting point for calculating the two-month period referred to in Art. 122(2), first and second sentence, EPC 1973 the same as that for calculating the one-year time limit referred to in Art. 122(2), third sentence, EPC 1973, which would thus deprive Art. 122(2), third sentence, EPC 1973 of any function.

In J 6/90 (OJ 1993, 714) the statement of grounds was not submitted until shortly after the end of the period of one year stipulated in Art. 122(2), first sentence, EPC 1973 but within the period of two months specified in Art. 122(2) EPC 1973, which in the case at issue expired later. The Legal Board of Appeal pointed out that the one-year period served to provide legal certainty. If this period had elapsed, any party could confidently assume that a patent application or patent which had been rendered invalid by the non-observance of a time limit would not be revived. However, if on inspecting the file a third party noted that an application for re-establishment had been made within the one-year time limit, he would have adequate notice. Therefore, to make a valid request for re-establishment of rights within the year immediately following the expiry of the unobserved time limit, it was sufficient if the files contained a clearly documented statement of intent from which any third party could infer that the applicant was endeavouring to maintain the patent application. See also T 270/91, T 493/95, J 6/98.

In J 6/08 the fee for re-establishment of rights was not paid until after the one-year period had expired. The Legal Board referred to the case law (J 16/86, J 34/92, J 26/95, OJ 1999, 668; J 6/98, J 35/03), under which the one-year period fulfils the function of a deadline whose purpose is to ensure legal certainty for the public and the completion of proceedings before the EPO within a sensible and appropriate period of time. In view of the particular circumstances of the case, however, the Legal Board considered that re-establishment was not ruled out since the fact that the conditions for re-establishment had not been met in due time – i.e. payment of the fee for re-establishment within the one-year period – was largely to be laid at the door of the Office itself. Where the Office has failed

to meet its obligation to provide clarifications or advice, a request for re-establishment filed within the period of one year can, when the principle of the protection of legitimate expectations is taken into account, be treated as valid even though the fee for re-establishment was not paid until after the period of one year had expired. In the case in hand, the requester's right to be treated as though the non-observance had not occurred took precedence over third parties' interest in legal certainty, which the one-year period in Art. 122(2), third sentence, EPC 1973 is intended to ensure.

4.2. Inability to observe a time limit

The word "unable" in Art. 122(1) EPC implies an objective fact or obstacle preventing the required action, e.g. a wrong date inadvertently being entered into a monitoring system (T 413/91, see also T 1054/03, T 1026/06, T 493/08, T 1962/08, T 836/09 of 17 February 2010, T 592/11, T 578/14). Unawareness of the expiry of the time limit must be distinguished from a deliberate act on the part of the applicant (representative) which is, for example, attributable to tactical considerations (see in this chapter III.E.4.2.1). Persistent financial difficulties incurred by the persons concerned through no fault of their own have also been recognised as such an obstacle (see in this chapter III.E.4.2.2).

4.2.1 Deliberate act missing a time limit; tactical considerations

In T 413/91 the appellant's reasons for not filing any statement of grounds were that he had expected an agreement with the proprietor, which, however, did not come about. The board stated that such a reason did not justify re-establishment of rights, pointing out that it was an extraordinary means of judicial remedy. A party who had deliberately chosen not to file a statement of grounds for the appeal could not achieve an appellate review through the back door of a request for re-establishment. See also T 2331/14, T 578/14.

In J 2/02 the Legal Board stated that Art. 122 EPC 1973 did not imply for an applicant any right to have the final effect of an intentional action cancelled. Holding back the payment of the fee for a reason other than being unable to comply with the legal provisions – particularly as a matter of strategy in the circumstances and for tactical considerations – is outside the scope of Art. 122 EPC 1973, and deprives the applicant of the possibility to invoke this article.

In T 1026/06 the board distinguished its case from the situation in T 413/91 and J 2/02, in which the boards had not recognised the act of intentionally allowing a time limit to expire as an obstacle. These two cases differed from the current case, in so far as the parties concerned had deliberately refrained, for motives extraneous to the proceedings, from performing the required actions, whereas the appellant in the current case had been unable to file an appeal because of a mistake of law.

In J 11/09 the representative omitted to make payment of the third renewal fee because he was unwilling to advance the renewal fee on account of unpaid invoices. Accordingly, the renewal fee remained unpaid not inadvertently, but on purpose. Given that payment had been refused on purpose, it was not possible to say that a one-off error had occurred in an otherwise well functioning system in the professional representative's office.